In The Matter Of:

TARA KATELYN WALSH vs.

STEPHEN GRANT RUSSELL,

B E F O R E: HON. ESTHER R. FURMAN

February 7, 2019

Aarons Court Reporting

175 Main Street, Suite 515, 5th Flr.

White Plains, NY 10601

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Min-U-Script® with Word Index

Public copy: the child's legal name is shown as E.V.; the date of birth and private street addresses are removed. Otherwise unchanged.

STATE OF NEW YORK
COUNTY OF WESTCHESTER: FAMILY COURT
----------x
TARA KATELYN WALSH,

Petitioner,

- against -

Family Unit: 154703
Docket Nos.:
O-06917-18/18A
O-06917-18/18C
V-07641-18

STEPHEN GRANT RUSSELL,

Respondent.
----------x

111 Martin Luther King Blvd.
White Plains, New York 10601
February 7, 2019

B E F O R E: HON. ESTHER R. FURMAN

A P P E A R A N C E S:
LYDIA ANTONCIC, ESQ., Attorney for Petitioner
JASON ADVOCATE, ESQ., Attorney for the Respondent
TARA WALSH, Petitioner
STEPHEN RUSSELL, Respondent

Electronic Proceeding Transcribed By:

Aarons Court Reporting
175 Main Street, 5th Floor, Suite 515
White Plains, New York 10601

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RESPONDENT

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[Audio CD, counter 2:35:13 p.m.]

COURT OFFICER: We'll have Ms. Walsh sit at this table, Mr. Russell at this one. Okay. Good afternoon. This is number 35 on the calendar in the matter of Walsh and Russell. Counsel, your appearance.

MS. ANTONCIC: Lydia Antoncic, 8 Madison Avenue, Second floor, Valhalla, New York, 10595, for the Petitioner, Tara Walsh. Good afternoon, Your Honor.

THE COURT: Good afternoon.

MR. ADVOCATE: Jason Advocate, Advocate, LLP, 1540 Broadway, New York, Yew York, for the Respondent, Stephen Russell, who is here to my left. Good afternoon.

THE COURT: Good afternoon.

COURT OFFICER: Parties, please raise your right hands. Do you swear and affirm to tell the truth?

T A R A W A L S H, a witness herein, was examined and testified as follows:

MS. WALSH: Yes.

S T E P H E N W A L S H, a witness herein, was examined and testified as follows:

MR. WALSH: I do.

COURT OFFICER: And your name and address unless confidential.

MS. WALSH: Tara Walsh, [redacted], Chappaqua, New York, 10514.

COURT OFFICER: Thank you, sir.

MR. WALSH: Stephen Russell, [redacted], San Francisco, California.

COURT OFFICER: Thank you, you may be seated.

THE COURT: Okay. I'm sorry you weren't able to resolve it, but I'm ready to begin.

MS. ANTONCIC: Okay. If I could just have two minutes to set up or one minute to set up.

THE COURT: Just asking, were you very far apart?

MS. ANTONCIC: If we could go off the record.

(Off the record 2:36:59 to 3:01:28)

MR. ADVOCATE: I think we should start, and we'll continue our discussions after today, Your Honor --

THE COURT: All right.

MR. ADVOCATE: -- and see if we can reach somewhere.

THE COURT: Fair enough.

MR. ADVOCATE: -- but for now, we should --

THE COURT: Fair enough. I guess you should just recall it. We're just

COURT OFFICER: Okay.

THE COURT: Take three, (inaudible). Go ahead.

COURT OFFICER: This is a recall of number 35 in the matters of Walsh and Russell. Counsel, your appearances.

THE COURT: Well, we don't have to do that again.

COURT OFFICER: Oh. No? Okay.

THE COURT: I think you just call the case and --

COURT OFFICER: Okay, then. Please be advised you're still under oath. Parties and Counsel remain the same.

THE COURT: Perfect. Thank you.

MS. ANTONCIC: Good -- good afternoon, Your Honor. We're here today on Ms. Walsh's petition seeking basic child support add-ons, health insurance, and counsel fees filed July 25th, 2018.

At the outset, Your Honor, I'd like to object to Mr. Russell's financial disclosure affidavit which I received just an hour ago, and the Court ordered, according to the October 23rd, 2018, transcript that Mr. Russell provide an FDA most recent tax return, W2, three pay stubs, and proof of income from all sources.

We did receive an FDA, but again, it's an hour ago, tax returns and W2s, but we did not receive the other items.

MR. ADVOCATE: We -- Your Honor, we produced treatment returns and W2s which are really the best evidence of all of his income. We got W2 from 2018 --

THE COURT: Well, I just don't care. What's missing?

MS. ANTONCIC: The pay stubs --

THE COURT: Okay.

MS. ANTONCIC: -- and proof of income from all sources.

THE COURT: Yeah, so --

MS. ANTONCIC: Mr. Russell --

THE COURT: -- whatever I ordered is pursuant to 424A, so it's not -- it's not optional.

MR. ADVOCATE: I know -- no, Your Honor, I think the -- I think the

MR. WALSH: I provided you pay stubs. I provided you pay stubs.

MR. ADVOCATE: I may have pay stubs here. I'm just going to take a quick look. Give me one second.

MR. WALSH: I don't have any (inaudible).

MS. ANTONCIC: But, Your Honor, I mean, this is the hearing date, and I would ask that --

THE COURT: Can I make the following point? Mandatory disclosure, whatever they brought I'm going to look at. I'm not going to preclude. There was no --

MR. ADVOCATE: Here's a pay stub.

THE COURT: -- prehearing motions. There's no preclusion that's happening today, especially since we all recognize we're not even going to finish today so anything that he doesn't have today, I will give him an extra week

or so to get to you.

I -- I have now Ms. Walsh's documentation. It was given to me today.

MS. ANTONCIC: Yeah, we filed an updated one.

THE COURT: And does Mr. Advocate have your client's documentation?

MS. ANTONCIC: Yeah, I provided him an updated copy earlier today as well.

THE COURT: Okay. So anything that is missing we can supplement, but I don't think that if your point that I should now preclude him, I'm not going to grant that request. That would be the only reason that you're raising it, unless you want me to order that he produce something within a short time frame, I -- I will do so.

MS. ANTONCIC: Well, I mean, and -- and -- I -- I -- I think that at the conclusion of today -- I think we're going to be requesting additional discovery, based on his testimony and whatnot. I mean, I -- I want to know more about his --

THE COURT: I don't even know that we're going to get to his testimony.

MS. ANTONCIC: No, we're --

THE COURT: -- today, right --

MS. ANTONCIC: -- probably not, Your Honor.

THE COURT: -- so. Okay? And there's not going

to be a huge discovery order because we're -- we're already at a trial point. If there's a paycheck stub, you should get that.

MR. ADVOCATE: I just -- I'm just handing 2018's December and 2019 January pay stubs to -- to Ms. Antoncic.

THE COURT: Thank you.

MS. ANTONCIC: Well, the one thing I would ask for at the adjourn date is information and discovery related to Mr. Russell's holding; what corporations he owns, what percentage interest he owns, values, things of that nature, and I can put it in a formal discovery request.

THE COURT: Why would we be doing that on the date of trial? No. We're not doing that.

MS. ANTONCIC: He --

THE COURT: No, we're not. This is trial. We should -- if I didn't let you discuss, we would've been an hour into the trial.

MS. ANTONCIC: I understand, Your Honor. You asked -- you asked if I wanted additional discovery --

THE COURT: No, I -- I --

MS. ANTONCIC: -- so that's why I asked.

THE COURT: -- no, documentation, not discovery.

MS. ANTONCIC: Okay. Okay.

THE COURT: In other words, pay checks stub,

whatever.

MS. ANTONCIC: That's fine -- that's fine. That's fine.

THE COURT: Let's -- you may call your -- you may call your witness.

MS. ANTONCIC: Okay. Well, before I do that, I just want to ask for the Court to take judicial notice of certain items.

One would be the amended temporary order of support, entered on November 21st, 2018. The second would be -- and I have an extra copy for Your Honor because I don't -- well, I know that this would not be here which is the income and expense declaration that Mr. Russell filed in California. The third --

THE COURT: What --

MS. ANTONCIC: -- would be --

THE COURT: I -- Counsel, I don't think I can take judicial notice of those.

MS. ANTONCIC: It's a court pleading.

THE COURT: If you wanted to put the document into evidence, I understand that.

MS. ANTONCIC: Okay.

THE COURT: Okay? So I can take judicial notice of orders, so the temporary order I will take judicial notice of, absolutely, or any other orders in this family

court file, I will take judicial notice of. Any other documents you can put into evidence in the course of the hearing through the appropriate witness.

MS. ANTONCIC: Okay. Well, it's a court -- it's a court pleading, that's why, but that's fine. We could do it as --

THE COURT: Is it -- is it Westchester County?

MS. ANTONCIC: No, it's not. It's --

THE COURT: (Inaudible)

MS. ANTONCIC: -- in California. So it would -- okay.

THE COURT: If it's certified. Is it a certified copy? Then perhaps I would say you're correct, but --

MS. ANTONCIC: Let me see if it's certified. I don't see a certification here, so we'll --

THE COURT: Okay. Okay.

MS. ANTONCIC: -- we'll use it as an exhibit, it's fine.

THE COURT: You can put it in through a witness. Do you -- do you wish to proceed? Do you --

MS. ANTONCIC: Yeah, I just --

THE COURT: (Inaudible) couple more things?

MS. ANTONCIC: -- couple -- couple more -- couple more -- couple more.

THE COURT: Couple points, okay.

MS. ANTONCIC: One is the -- an interim counsel fee order entered by Judge Gordon-Oliver dated January 10th, 2019, where based on the parties' income Mr. Russell was ordered to pay $15,000 in counsel fees. And another order from Judge Gordon-Oliver dated November 24th, 2018, where Mr. Russell was ordered to pay 100 percent of the AFCs fees.

November 26th, 2018, also from Judge Gordon-Oliver that MR. Russell was ordered to pay 100 percent of Dr. Heimowitz, the forensic fees and likewise that he was ordered to pay 100 percent of Dr. Griffin, the substance abuse evaluator's fees and that order is dated December 18th -- December 18th, 2018, so that -- that's it for that.

THE COURT: Yes, Counsel, I will take judicial notice of the orders.

MS. ANTONCIC: Thank you, Your Honor. So now I'd like to call my client.

THE COURT: Yes, you may. Do you wish to put her on the stand?

MS. ANTONCIC: Do you want to go on the stand?

MS. WALSH: I do -- whatever.

MS. ANTONCIC: Sure.

THE COURT: It's up to you. You would prefer her on the stand?

MR. ADVOCATE: I would prefer, if you don't mind,

Your Honor. It's much easier to hear.

THE COURT: Absolutely. Please take the stand. Ma'am, I'm just going to tell you, when your attorney questions you if there's an objection, don't answer until I rule. Okay?

MS. WALSH: Okay.

THE COURT: Thanks. You may proceed.

MS. ANTONCIC: The officer put her address on the record, correct? So I don't --

THE COURT: You can just go right to the questions.

MS. ANTONCIC: Okay.

DIRECT EXAMINATION

BY MS. ANTONCIC

Q. Ms. Walsh, what is your relationship to the Respondent?

A. He's my former domestic partner, and the father of my daughter.

Q. And what is your daughter's name.

A. [redacted] E.V.

Q. And her age -- date of birth, rather.

A. [redacted]. She's just over 12 months.

Q. You -- you indicate you gave your address as in Chappaqua, New York. How did you come to live there?

A. Well, Evie was born in Manhattan and our home was in

Brooklyn, in Carroll Gardens. We ended up having to go to live in San Francisco with her father because of pretty much financial pressures.

MR. ADVOCATE: Objection, Your Honor, beyond the scope of the question.

MS. WALSH: Well, she -- so --

THE COURT: (Inaudible)

MS. WALSH: Yeah.

MR. ADVOCATE: The question was simply how did she come to live in Chappaqua, and we're getting a dissertation about --

THE COURT: And I -- I -- I think Ms. Walsh thinks she's giving me the -- the history -- so just get to when you got to Chappaqua.

MS. WALSH: So I got Chappaqua in January -- June of 2016. I had to come back to Chappaqua because I was --

MR. ADVOCATE: Objection, Your Honor.

THE COURT: Sustained. Could you rephrase your question so we can talk about the time frame more, you know, in connection with the birth of --

MS. ANTONCIC: Well, yeah --

THE COURT: I think she was born in 2018.

MS. ANTONCIC: -- we -- we can -- no, she was born in 2017, no?

MS. WALSH: Oh, so (inaudible) the calendar's --

MS. ANTONCIC: Oh, right January, ’18, you’re right.

MS. WALSH: Yeah, January 2018.

MS. ANTONCIC: I’m sorry. I knew she was just turned one.

MS. WALSH: Yeah.

MS. ANTONCIC: That’s fine, Your Honor. I just wanted to -- what I’m trying to get to -- to get to is the difference in the housing.

MS. WALSH: Yeah, I mean, I, like -- can I --

MS. ANTONCIC: Okay. So how about this? How about this? Let’s start with this.

Q. Where did you live when you first became pregnant with Evie?

A. I lived in Manhattan --

Q. Uh-huh.

A. -- in Midtown. And when I was around five months’ pregnant, I moved to Brooklyn, right near my older sister and her family.

Q. Can you please describe what your residence in Brooklyn looked like?

A. We had an apartment in a brownstone on the second floor. It was two bedrooms, a bathroom, a huge open living space with a kitchen. It was in, you know, one of the nicest parts of Brooklyn, like the part that’s known to be like the

best place to raise kids and families. There's a lot of baby classes, kid's stores --

THE COURT: Okay (inaudible) much better.

MS. ANTONCIC: How much -- how much was --

THE COURT: Better.

Q. How much was your rent?

A. It was $3800 a month which was more than I was used to paying myself, but Mr. Russell was paying the rent for me and my daughter.

Q. So he was paying your rent?

A. Yes.

Q. Was he paying any other expenses for you or your not-yet born daughter?

A. Yes, he was fully paying for everything. I was told that I had no financial strains, that money wasn't an option. I was always encouraged by him not to work, although I continued working to the best of my ability. I did have a hard pregnancy, but Mr. Russell -- I had numerous ones of his credit cards. He also --

THE COURT: All right. You're going (inaudible).

MS. ANTONCIC: Well, we'll -- we'll -- we'll get to that.

THE COURT: I have a question.

MS. WALSH: Yes.

THE COURT: While you're in Brooklyn in this

beautiful apartment, were you living there alone with the child or with the three of you?

MS. WALSH: Alone.

THE COURT: Oh.

MS. WALSH: Just me and my daughter.

THE COURT: Okay.

MS. WALSH: That was -- well, we only were there for a month-and-a-half before we were -- Mr. Russell was supposed to fully financially support me after my daughter was born, and I gave up the majority of my business. I have a marketing consulting business. And shortly after she was born, he went back to California and he refused to give me the money he had promised to give me. So I ended up having to go back to California. I didn't want to.

THE COURT: To California?

MS. WALSH: Yeah.

THE COURT: All right.

MS. WALSH: He made me go all the way back there.

THE COURT: So you moved to California --

MS. WALSH: Yeah, and I didn't -- I didn't want to --

THE COURT: Can you give me the month and the year?

MS. WALSH: March 2018. So my daughter was only a month-and-a-half old. She wasn't really old to be -- old

enough to be traveling, but Mr. Russell put --

THE COURT: Okay. But --

MS. WALSH: Yeah.

THE COURT: -- so March 2018, you moved to California. Were you living together then?

MS. WALSH: We -- we -- I moved in with him, yes.

THE COURT: You moved in with him? Okay.

MS. WALSH: Yes.

THE COURT: And then, at some point, you moved back to New York, and when was that?

MS. WALSH: It was in June -- the very beginning of June 2018.

THE COURT: So it was just a few months later?

MS. WALSH: Yeah.

THE COURT: Okay.

MS. WALSH: Yeah.

THE COURT: Okay. You can take it from there.

MS. ANTONCIC: Okay. Sure.

Q. So when you moved to San Francisco, can you please describe -- did you move in with Mr. Russell's -- I'm sorry, strike that. When you moved to San Francisco, you lived with Mr. Russell, you testified, right?

A. Yes.

Q. Okay. Can you please describe what -- what his residence looked like?

A. So at first, we moved into a house that he owned, that -- it was his mother's house. It was a three-bedroom house in San Francisco. We were staying there temporarily until we found our own place. It was, you know, a 1.52-million-dollar town home that Mr. Russell owned that was his mother's. And then we moved into -- we lived in a few different places but the main place we moved into that was supposed to be our home was at [redacted] on the 55th floor. It was a -- I think $16,000 a month penthouse. You know, like incredibly fancy apartment that was --

Q. How many bedrooms?

A. It was two bedrooms and three bathrooms.

Q. Did Mr. Russell have any household staff?

A. yes, Mr. Russell had a lot of household staff. He had a full-time security team, that I was told by him at numerous points was anywhere from, I believe, like $9000 a day. So a team of full-time security guards. We had our apartment on the 55th floor. They had their own apartment on, I believe it was the 8th floor that was $8000 a month.

Q. I'm sorry, who had their own apartment?

A. His security team.

Q. And who paid for that?

A. Mr. Russell. So he was paying the $16, the $8 and then also the mortgage on his mother's house then. So there was a full-time security team that drove us around as well, so

whenever I left the house, the would drive me places. They were with Mr. Russell all the time. There was probably three different security people working at any given time. They worked 24 hours a day. We also had a personal chef who was cooking vegan raw food which I didn't really like. Mr. Russell had asked for that. There was a full-time nanny that lived with us. There was a personal assistant for Mr. Russell that also helped me out. My daughter also was a member of a concierge medical practice that cost $40,000 a year for enhanced medical services. She had had a few small VSD holes in her heart, so she was, you know, brought to the best doctors and best cardiologists that were, apparently, affiliated with Stanford. I'm trying to think of what other --

Q. Well, just going back to the chef. Do you know how much the chef was paid?

A. I don't, but I know that prior she had worked for -- what is his name? He was like one of the Facebook guys. Steve probably knows his name. This billionaire tech quy. She was his private chef before --

Q. And what about --

A. -- working for Steve.

Q. -- the -- the nanny? How much was the nanny paid?

A. She was paid like $35 an hour which I thought was too much that she was asking. It was like $35 or $40 an hour, but she was making approximately $4 -- to $7000 a week. A week, she

was making.

Q. So you were working?

A. I -- I was trying to work. Living -- I don't want to get into too many details and get objected but living with Mr. Russell was very time-consuming and took a lot out of me, for a variety of reasons, which is why he now has to have supervision, but I tried to work. And the point -- one of the biggest reasons I ended up going back to San Francisco with my daughter is because he offered to pay for a nanny which he had refused to do, even though he had promised to in New York. So I went back to California to be able to start working. I have a handbag business and a marketing consulting business -- to start making money and save enough money for me to then be able to go back to New York and feel financially secure, but when I was I California and I was trying to work, Mr. Russell started getting very angry that I was working, and he told me -- he basically told me one day, if I was working and I had savings in the bank, then I could leave whenever I wanted to. So he said that if I wanted to continue working that I had to pay for 50 percent of the nanny, which obviously, I couldn't afford. So at a certain point I just kind of like gave up working. I mean, I still maintained one client that I still have for my marketing business, but --

Q. Well, let's -- let's just take a step back. What discussions, if any, did you and Mr. Russell have about the kind

of lifestyle you wanted to provide for Evie?

A. So first of all, me and Mr. Russell were together for like three, three-and-a-half years. I had gotten pregnant accidentally early in our relationship. I had a --

MR. ADVOCATE: Objection, Your Honor. This is not responsive to the question.

THE COURT: Sustained.

Q. Well, what discussions did the two of you have about the lifestyle you wanted to give Evie?

A. We had -- first of all -- Evie was not a mistake, in many years. We were trying to have --

MR. ADVOCATE: Objection, Your Honor.

THE COURT: Sustained.

Q. Well, what did you say, what did he say, about what kind of lifestyle you wanted Evie to have?

MR. ADVOCATE: Your Honor, I'm just -- I'm also going to object to this. I don't think discussions about what kind of lifestyle you hope to have in the future is relevant.

MS. ANTONCIC: It's one of the factors, Your Honor.

THE COURT: Well --

MS. ANTONCIC: It's one of the factors, the kind of life -- the standard of living the child would have enjoyed if the parties stayed together.

THE COURT: -- you're doing a fine job creating a picture of what life was like, but what the words were in terms of future promises, I -- I don't need to hear, so --

MS. ANTONCIC: Okay.

THE COURT: -- I'll sustain the objection.

Q. So let's talk about your business for a second. What's the name of the business?

A. Vital Branding.

Q. How, prior to getting pregnant with Evie, how much were you earning?

A. Anywhere from 150 to the max I made right before I met Steve was like $230,000 a year.

Q. And you testified that you stopped working when you were pregnant with Evie when you were -- well, right after you had Evie when you were in San Francisco.

A. Well, I significantly cut back on my clients while I was pregnant because Mr. Russell really, really encouraged me not to work, and he actually encouraged me to buy the most expensive things, get the most expensive nannies. Like I had a night nurse. He asked me to hire the most expensive night nurse, which I didn't feel comfortable doing. But I ended up doing that, even though I didn't -- but he -- when I was pregnant, he encouraged me not to work. I gave up clients. I had a hard pregnancy. I had preeclampsia so I was sick all the time and it was hard for me to work.

Q. And how did --

A. So my business took a huge cut. And then when I had to -- when I went to California with my daughter, when she was only a month-and-a-half old, and it was very difficult for me to work there, then it took an even bigger hit because I was so far away from all my clients in New York.

Q. And how -- how much would you estimate was being spent no Evie's care in San Francisco?

A. Evie -- so for the month-and-a-half I stayed in New York, before we had to go back to California, Mr. Russell refused to help pay for the costs when I was in New York for that period, but when I got back to California, his banker wired me $12,000 basically to reimburse me for a month-and-a-half of Evie's care. So I would say, I mean, I was spending a crazy amount of money between her -- her nanny alone was probably $20, $30,000 a month. She was getting like $5000 a week. And then on top of that.

THE COURT: Five thousand a week?

MS. WALSH: Yes, she was -- I -- I ended up wanting to fire her because I thought she was like --

THE COURT: Who was paying $5000 a week, you?

MS. WALSH: No, he was.

THE COURT: How do you know? Do you have proof that that's --

MS. WALSH: Yeah, yeah, I have --

THE COURT: -- what he paid?

MS. WALSH: -- I put it all in my -- yeah, the wire transfers that -- the emails that I sent to his banking person.

THE COURT: Why?

MS. WALSH: Every -- every week I would have to send his banking person an email with the amount for him to wire the money for the nanny.

THE COURT: Sure.

MS. WALSH: Yeah.

THE COURT: Okay.

MS. WALSH: Yeah.

MR. ADVOCATE: I would ask that if there's proof, it be submitted.

MS. WALSH: Yeah, it's in all my --

MS. ANTONCIC: I'm sure you'll cross examine her.

MR. ADVOCATE: I will.

Q. Going back to Evie's other expenses, how were they paid for?

A. They were paid for by Steve and also, I just --

Q. How though?

A. How? Oh, I had access to like four of his different credit cards that I used to pay for everything. I literally didn't use my money to pay for like anything. Aside from like business fees, like my Adobe subscription and stuff like that.

THE COURT: Your what?

MS. WALSH: Adobe for like Adobe Photoshop.

THE COURT: Oh, okay.

MS. WALSH: Yeah, yeah. Yeah, go ahead, I know you can't just (inaudible).

Q. So you -- going back to -- now, you testified about -- you described your living conditions in Brooklyn and San Francisco. Could you please describe your current living conditions?

A. So I -- I -- we're living at my parents' -- me and my daughter. We share a small bedroom in their attic. They have like a super old house, so it's actually like freezing up there all the time, so I have like a small heater I the room for us. We -- we were never meant to stay there permanently, so my daughter's been sleeping in a temporary crib. She has like a temporary set of drawers. You know, I have like a -- I'm used to having like my own comfortable bed and TVs, and I actually have two dogs that are unable to live with us there, but --

THE COURT: Is this the home that you grew up in?

MS. WALSH: It's the home that I grew up in, yeah, but I'm one of six kids, so three also live at home right now --

THE COURT: Okay.

MS. WALSH: -- so it's not like --

THE COURT: So you -- you didn't have your own

room?

MS. WALSH: I had my own room growing up, yeah.

THE COURT: So you couldn't go back to the room?

MS. WALSH: My adopted sisters -- I have two adopted sisters --

THE COURT: They're there?

MS. WALSH: -- yeah. So and we also -- we share a bathroom with three of my other siblings. And we, you know, obviously, I mean, there's like -- there's a lot of love and a lot of people around, but I -- I do feel like I'm not really providing the life for her and for myself that I want. You know, it's not -- it's hard to be living at home, you know, under your parents' roof when you're 34 years old.

Q. Where would you like to live?

A. I'd like to live in my own place with my daughter. Mr. Russell's asked in this court process a lot that I have a full-time nanny --

MR. ADVOCATE: Objection, Your Honor.

THE COURT: Sustained.

A. I would like to live in my own place. I would like to get my two dogs back who, you know, were with me my whole pregnancy and with my daughter.

Q. Where are they?

A. They're staying at an ex-boyfriend of mine's house.

He's taking care of them, thank God, so I didn't have to give them away. Yeah.

Q. Now, when you said your own place, where -- where would you like that --

A. Wherever I live I would like to live close to family, so I looked at places in Chappaqua, which end up -- and I've done a lot of extensive research. I'd like to live in like a town home or an apartment. In Chappaqua, they seem to be much more expensive than they would be if I move back to Brooklyn, near my sister. The -- the apartments seem to be more affordable there, but for the time being because my daughter's been around my family in Chappaqua, I would like to stay in Chappaqua in my own place.

Q. Okay. And I'd like to show you a copy of your financial disclosure affidavit that you file --

THE COURT: Should we -- I think we should mark it, right?

MS. ANTONCIC: Yeah, absolutely.

THE COURT: I'm going to mark this collectively as Petitioner's 1.

MS. ANTONCIC: That would be great, Your Honor.

THE COURT: Is it the copy that was given to me this morning?

MS. ANTONCIC: Yes.

THE COURT: So then she can -- oh, oh, yes.

Actually, I'll mark everything, and you can show it right to her.

MR. ADVOCATE: Are you -- are you including right now all the add-ins to it?

MS. ANTONCIC: Yeah, yeah.

MR. ADVOCATE: Okay.

MS. ANTONCIC: I mean, unless you have an objection to it.

MR. ADVOCATE: Probably not, just give me a second. I need --

MS. ANTONCIC: I mean, I'll do my best to delineate what's there.

MR. ADVOCATE: Because it's often better to put some of the -- some of the stuff under a separate label, but that's fine.

Q. I'd like to direct your attention to page 5 of your financial disclosure affidavit. In Item A, rent or mortgage payment projected upon move out, you listed $6800 as the figure. How did you arrive at that figure?

A. So there's a new development. I don't know if the judge is familiar with Chappaqua, but it's called Chappaqua Crossings. There's -- where the old Reader's Digest used to be. It's all condo units now and there's a Whole Foods. I've been saying for awhile that it would be ideal to live there. It's like less than a mile away from, my parents' house. It's close

to like her doctor, it's within walking distance, whatever, so I recently inquired about what a three-bedroom would be --

MR. ADVOCATE: Objection, hearsay, Your Honor.

MS. WALSH: I --

THE COURT: I'm sorry which part is hearsay?

MS. ANTONCIC: Yeah, what?

MR. ADVOCATE: It's going to be hearsay because she's going to -- she just said, "I inquired and they're going to," and she's about to testify to what someone told her it would cost to rent.

THE COURT: And so in --

MS. ANTONCIC: Well, it was -- yeah, sorry, sorry.

THE COURT: -- I will sustain the objection as to you're telling me what someone told you, but if you have actual knowledge of the rents, then your attorney can ask, and then you could just --

MS. ANTONCIC: Yeah.

Q. What knowledge do you have about comparable rents in Chappaqua?

A. Well, for the Chappaqua Crossings, I talked to someone that, you know, is an official person that works for Chappaqua Crossings and specifically asked what units were available.

THE COURT: He's just going to object again --

MS. ANTONCIC: Okay.

THE COURT: -- because you can't say what someone said.

MS. ANTONCIC: Ms. --

MS. WALSH: Oh, okay.

MS. ANTONCIC: -- you can only say what you --

MR. ADVOCATE: And I -- and I think, Your Honor --

MS. ANTONCIC: -- know.

MR. ADVOCATE: -- at the end of the day, any answer she's going to have is going to be based on what this person said.

THE COURT: Unless you've actually seen an apartment and know what the rent is, then --

MS. WALSH: Yeah, I do. Yeah, I do, and I have personal knowledge.

THE COURT: All right. Then, how much is it?

MS. WALSH: $6800.

THE COURT: Okay.

MS. WALSH: Yeah, and I --

THE COURT: That's for a three-bedroom?

MS. WALSH: For a three -- which seems like crazy high, but then I started looking into other town house apartments in Chappaqua or within even like Armonk or Mount Kisco or Pleasantville, and there's not a lot of options. There's not -- there is one other town house -- home in

Chappaqua that was like $4200 that was a two-bedroom, but there's not a lot of inventory, I guess is what I'm trying to say of rentals for town homes or apartments in Chappaqua or Armonk or Mount Kisco or Pleasantville.

Q. How long have you been looking?

A. I've been looking for like two to three months just keeping an eye out because I'm eager to like to move out whenever I can.

Q. Before we continue with the FDA items, well, actually let me strike that. And then you list $619 as total for utilities. How did you arrive at that figure?

A. Well, I -- I've lived on my own for the past, what?

THE COURT: I'm sorry. First of all, are you moving this document into evidence?

MS. ANTONCIC: Oh yes, Your Honor, I was going to do that at the end when I was done with my questions.

THE COURT: All right. Well, you're asking her about -- you're asking about specific items, so I think (inaudible) sort of reading from the document. Is there any objection to this document coming into evidence subject to cross examination?

MR. ADVOCATE: Your Honor, subject to cross examination, I would only note, Your Honor, that the document consists of essentially three items. You've got the financial disclosure affidavit --

THE COURT: 2017 tax return.

MR. ADVOCATE: -- and some invoices from her company. Obviously, I -- I really am not going to object to the tax returns, I just -- normally I would like more of a foundation for say the invoices since there's really --

THE COURT: When you -- when you say the invoices, do we mean this?

MS. ANTONCIC: No --

MR. ADVOCATE: No.

THE COURT: Oh.

MS. ANTONCIC: -- some -- the -- Ms. Walsh doesn't have a W2, so -- I'm sorry -- she doesn't get pay stubs, so she attached the three invoices, and I'll have her testify to what they are.

MR. ADVOCATE: On the back of the -- right after the end of the nine-page financial disclosure affidavit, you'll see two invoices --

THE COURT: Okay.

MR. ADVOCATE: -- three invoices, I should say -- for her company, Vital Branding. And then followed by that is the 2017 federal tax return, and I believe it's --

THE COURT: So you're not agreeing to the invoices?

MR. ADVOCATE: I would like a little foundation, Your Honor, that's all.

THE COURT: So I'm going to separate them out then -- let me just make a record here that Petitioner's 1 is the financial disclosure affidavit, Petitioner's 2 is the 2017 tax return. They are in evidence without opposition. And Petitioner's 3 would be the invoice, because it's not in yet.

(Petitioner's 1 and 2 admitted)

THE COURT: You'll have to give it to her now. What is this, though?

MS. ANTONCIC: There's one more attachment, Your Honor --

THE COURT: What's this?

MS. ANTONCIC: -- and that's a spreadsheet that --

THE COURT: Right. So I'm assuming that's not in yet either correct? Mr. Advocate?

MR. ADVOCATE: No, and I don't -- I -- I would object to this. I don't -- I don't even know what it is frankly.

THE COURT: Okay. So that'll be Petitioner's 4, but 3 and 4 are for ID only.

MS. ANTONCIC: Okay.

THE COURT: So --

Q. Ms. Walsh, directing your attention to Petitioner's 4 --

A. Uh-huh.

Q. -- which is the spreadsheet with attachments, what is it?

A. Well, first of all, I'm a single parent and I'm working and --

MR. ADVOCATE: Objection, Your Honor.

MS. WALSH: I spent a lot, a lot of time --

MS. ANTONCIC: Just -- just tell the Court what it is. What is it?

THE COURT: There's an objection, I need to --

MS. WALSH: Okay.

THE COURT: -- hear it.

MR. ADVOCATE: Your Honor, I'm just objecting. She's not responding to the question. She's asked to identify the document and we're getting background again.

THE COURT: Okay. So let's just make our -- like let's just try to answer the specific question because you'll have plenty of time to address other issues. Okay. Just answer the questions that your attorney asks.

MS. WALSH: It's a very detailed, extensive spreadsheet I made of Evie's expenses that I spent a lot of time making.

THE COURT: Are you talking about Petitioner's 4 now?

MS. ANTONCIC: Yes, Petitioner's 4.

Q. It's three pages, and then there's one, two, three, four pages that's entitled, "Amazon Evie Orders, May 2018," right?

A. Yeah, there also should be other supporting documents that I put that I --

Q. Okay. But this is -- this is -- part of your -- (inaudible).

A. Yeah, yeah.

Q. Okay. So going back to the first three pages on the summary of Evie's monthly expenses, how did you arrive at these figures?

MR. ADVOCATE: Your Honor, the documents aren't in evidence yet, and I'd like to make an objection that it seems that what's been testified to is this is a summary of her expenses. If it's a summary of spending, then it's a summary based on underlying documents.

The rule is if you're providing a summary of records, the underlying records have to be produced and have to be made available to the Court. I don't have those underlying records. You cannot simply submit a summary saying this is what the summary of other documents out there is and not produce those documents. That's the rule.

THE COURT: I'll -- I'll sustain the objection. You can get this information in through your questions and supporting documents, but I'm going to sustain your

objection; Number 4 is not in.

MS. ANTONCIC: Your Honor, just take note to my objection because some of these documents -- some of these numbers here are projected costs and based on what my client --

THE COURT: Yeah, I -- I ruled and your objections noted, but I'm not allowing it in.

MS. ANTONCIC: Okay.

Q. So going back to the financial disclosure affidavit --

A. Uh-huh.

Q. -- directing your attention to food. How did you arrive at the figure $2270?

A. So first of all, Evie's -- because she's had a privileged lifestyle due to Mr. Russell, and she's had fancy doctors and providers and so forth, she -- through my research and direction she gets high quality food and nutrients. Her formula that she has been using for probably like eight months is from Europe, so it needs to be shipped in from Europe. It's not sold in the U.S. It costs approximately $550 after shipping each month, just for her formula alone. It's called HiPP -- H-i-p-p. It's a -- and she's stayed on that formula, and she's still on that formula. She's also -- I've been a vegetarian my whole life, so she's also a vegetarian. I was raised eating --

THE COURT: I'm sorry, I'm sorry --

MS. WALSH: Yeah?

THE COURT: The one-year-old is a vegetarian?

MS. WALSH: Yes.

THE COURT: Because you made her one, I --

MS. WALSH: I -- I mean--

THE COURT: -- I mean, surely, she didn't make that choice.

MS. WALSH: -- no, of course she didn't. No, but I was vegetarian the whole time I was pregnant with her, and I just -- I was also raised as a vegetarian. So she -- my family's -- my mother's very healthy -- but she only eats vegetarian, like really organic, highest quality food from Whole Foods.

We make her a lot of her food, and I actually took the time to go through and put a typical menu for her every week like of what I feed her and those actual items from Whole Foods and the total goes altogether and came at a number which was $274 a week.

Which is actually probably more on the lower side of what we're actually paying for groceries every week, but $264 times 4.3 is how I got to the -- it's like $1300 or something. I don't have the exact breakdown. What is it -- $1067?

And then the dining out thing. I mean, I don't have the money to be -- the dining out thing that says $700 is also including me dining out, not just Evie. I would

like to be taking Evie to be dining out and going into the city and seeing family and friends, but I just don't really have the money to be doing that right now.

So I'd probably say for Evie dining out it would be like $200 if I bring her into the city, you know, like once a weekend with friends and family.

Q. How much are you earning now?

A. Like, not a lot -- I'm getting -- the invoices are from my one client that I still have.

Q. Okay. When you say the invoices are you referring to Petitioner's 3 for identification?

A. The -- yes, yes.

Q. And what is this?

A. So that's the one client I have right now for my marketing consulting client. They're called Airline Pros. They pay me via direct deposit into my bank account, so I don't have any pay stub or check from them. That's why I provided just the invoice that I give to them every month. And occasionally I'll get add-on projects any given month, but it's not always like consistent. Like right now I'm finishing up a website for a construction company where I'm supposed to be getting $1000 in at some point, but that's like not consistent. The $4200 is like made consistently.

MR. ADVOCATE: Your Honor, I want to object to these three invoices going in, so we can move on from

them.

MS. ANTONCIC: But they don't need to go in. She just referred to them, so I was just asking her how much money she makes.

MR. ADVOCATE: If you'd like them to go in, I will not object.

MS. ANTONCIC: Well, if you want them to go in, all right. They could go in.

MR. ADVOCATE: It doesn't matter.

MS. ANTONCIC: I mean, her -- yeah. I -- I'll move them into evidence.

(Petitioner's 3 admitted)

Q. So it's your testimony that you're earning I guess it's approximately $4200 a month?

A. Yes, and I have significant expenses. I -- Mr. Russell --

MR. ADVOCATE: Objection.

MS. ANTONCIC: We'll get -- we'll get to your expenses.

MS. WALSH: Okay.

THE COURT: Just ask her the next question.

Q. We'll -- we'll get to your expenses. Do you currently have a car?

A. No, I have to borrow my parents' car. Which is really --

Q. On your financial disclosure affidavit, at J you're listing auto expenses of about $1135. How did you arrive at that figure?

A. I was really detailed about it. I haven't owned a car for a really long time, but the safest, most affordable car that I could find for a child is like a Ford Focus, I think that's like $264 a month, a lease. Then auto insurance is like $185, then gas is like $4 to $500, so it ends up being like a $1000 something, but I didn't really -- I really need a car because I'm -- my car is being used by like four other people in the family, so it's hard for me to --

Q. When -- when you say your car, is that your parents' --

A. It's my mom's car, yeah.

Q. Okay. So it's the car that they're letting you use that's being used by --

A. Yeah, yeah, it's -- it's -- I desperately need my own car.

Q. And how many hours to your work approximately?

A. I mean, I spend a lot of time away from my daughter, so it seems like more, but probably like 25 to 30 that I'm working, like on and off. It really -- it's hard for me to be building my business right now and adding on clients because of all this court stuff, honestly. Between -- there was action in California for family court, there's action here. Mr. Russell

frequently files emergency actions for all different things. He's also suing me in California in a civil case, so I also have to have a civil lawyer in California.

Q. How much are all these legal fees costing you?

A. They cost me like in total of like over $60,000 so far, but on an ongoing basis, because I'm paying at minimum $5000 a month I legal fees between you and my lawyer in California, but I'm paying off -- it's like gradual that I'm paying a little each month for awhile.

Q. And the 25 to 30 hours a week that you're working, where are you are working? In Westchester, Manhattan, or somewhere else?

A. I was working out of -- we work in Midtown with my aunt who has an agency. She was letting me work from there, so I could meet with like potential other businesses. But now I'm -- I'm just working from home because it's hard for me to get into the city that often --

Q. And what are your --

A. -- (inaudible).

Q. -- you list $300 as public transportation costs. What is that for?

A. Approximately to go -- if I am going into the city heavily in a given week, it's like $30 in Metro North fees for one day, so say $30 times 10 days would be $300; I think how I got to that.

Q. And there's a health -- you list health insurance at $650 a month. Was there a time when your health insurance was being paid for by Mr. Russell?

A. Yes, I was on Mr. Russell's health insurance for three years probably as his domestic partner, as I didn't pay health insurance, particularly for my pregnancy and after birth with Evie, but when I decided to come back to New York and end my romantic relationship with Mr. Russell I think had to pay for my own insurance.

Q. So that's an additional -- that's a new expense?

A. yeah, $650 a month, yeah.

Q. And you list $320 for Mommy and Me, Baby and Me, and language classes. Is that weekly or monthly?

A. That would be monthly, and that's something that I wish I was doing more of right now. I'm signed up for one Amadeus music class in Chappaqua which is, I think it's like $400 for 10 weeks. But the other classes that I would like to do would approximately be like $350 a month like minimum.

Q. And what kind of classes would that be?

A. I also am looking into a language class. My niece did a Chinese class in Brooklyn, and there's also this gymnastics studio place that does a Mommy and Me like activity, gymnastics, moving around class for babies, toddlers.

Q. And did you and Mr. Russell ever discuss what kind of activities you wanted Evie to be exposed to?

MR. ADVOCATE: Objection, Your Honor. What's the relevance?

MS. ANTONCIC: Well, it's relevant as to --

THE COURT: I'll allow it. That's an expense. I'll allow it.

MR. ADVOCATE: Okay.

THE COURT: Go ahead, Counsel.

MR. ADVOCATE: And can we get a time frame of such discussions?

Q. When you were pregnancy with Evie --

A. So we talked about -- a lot about -- maybe potentially raising -- home schooling Evie. We talked about that we wanted to travel with her frequently, so bringing her to all different places and to all over the world. Starting when she was a baby, the plan was to travel. When we were in California, we did a little bit of traveling, but to bring her to all different places, expose her to all different visual things and cultures. The plan also was for me -- obviously, the ideal situation was for me to be spending more time with my daughter and not having to work so much to be able to spend -- help raise her more than I'm able to now.

Q. Did you and Mr. Russell and Evie ever travel together?

A. Yes, we did.

Q. Where did you travel?

A. We went to a few different places in California,

different like weekend getaway places.

Q. Did -- did you ever fly?

A. We -- I flew with him to Hawaii on a trip, but she was too young to come. When we flew to California, Mr. Russell got a private plane because I was concerned about her health in flying because she was so little. So we flew in a private plane which, apparently, was like $40,000 or something.

Q. Was that the only time you flew on a private plane?

A. With her, yeah.

Q. Did Mr. Russell use private planes regularly, to your knowledge?

A. No, not to my knowledge, but he definitely only flew first class. And I only flew first class that he paid for, for the whatever three -- three plus years of our relationship -- when I was going back and forth to California.

Q. Moving on to childcare, you list $4485 which is five days a week, six-and-a-half hours a day. Is that projected or actual?

A. Well, that -- it's -- it's a difficult question that you've been -- challenged me on, but right now my daughter is being babysat probably like five hours, four days a week by a babysitter, Christina, who also helps clean my parents' house. And my mom is also watching her, like five hours at minimum five days a week or my little teenage sisters. But my mom is primarily paying for Christina -- like the time Christina's

watching my daughter because she knows I don't have the money. And I also, ideally, would like to be paying my mom for the time that she's spending watching my daughter. My mom's raised six kids, she's older, she has a part-time job at the Greenwich Audubon, but I know that she would like to make her own money. And if I wasn't living at home with my daughter like, she likely would have a part-time job. So I feel like it's only fair to pay her, I mean --

Q. How much does Christina get paid?

A. She gets $25 an hour, and I would want to pay my mom, you know, 25, she wouldn't take more than that, but I just -- I -- that's personally how I feel morally. Steve's mother, Linda, in California, watches his brother's daughter all the time. She's a baby, and I've already talked to her and told her like I think it's so unfair how you're not paid, like you should be paid. And she's like, yeah, that would be -- and that reminds me, Steve gave his brother -- his niece -- $50,000 when she was born, to just help out with her like, but Evie hasn't gotten anything, so you just reminded me of that.

Q. And then you list miscellaneous personal expenses, Medicare. What does that $1500 number represent?

A. Where -- where is that?

Q. Under U on page 6.

A. Page 6? Oh, it's my medical care. It's my insurance and then my other -- like my psychiatrist and my --

Q. Is it your insurance or your psychiatrist?

A. My insurance is -- it says medical care -- my insurance is $650.

Q. Okay. That's listed as N, so are you saying it's $1500 more than that, or --

A. I'm just like confused what this is. Miscellaneous personal expenses, if I look at my Excel sheet --

Q. Let's take a step back. How much does your therapist cost?

A. My therapist was $2000 a month, which my parents were helping me pay for, but I had to cut that down. Now, it's just $1000 a month, but I really can't afford it, so I'm going to have to stop that.

Q. So $1000 of that is your therapist?

A. Yeah, and then my psychiatrist is at minimum, $400 a month if I just see him once.

Q. Okay. So now, the last expense I want to talk about is Other -- Evie's Daily Essentials, Feeding, Toys, etc.

MS. ANTONCIC: And, Your Honor, I understand the Court sustained Mr. Advocate's objections as to the spreadsheet, but there's an Amazon Evie order dated May 2018, that I believe is an actual receipt that I'd like to ask my client about. And I'd ask that it be separated and marked as a separate exhibit.

THE COURT: Do you see a receipt from Amazon?

MR. ADVOCATE: Yeah, it's the last four pages.

THE COURT: That's not an Amazon receipt.

MS. WALSH: It's -- I could've printed --

THE COURT: She created that. It doesn't look like an Amazon receipt.

MS. ANTONCIC: Okay. Can I ask her about it?

MR. ADVOCATE: You're going to end up with the same situation of we need the underlying documentation.

THE COURT: I already made a ruling.

MS. ANTONCIC: Okay. Well, we'll -- we'll get the underlying documentation then.

THE COURT: Yeah. Okay. That's fine.

Q. What, if anything, did Respondent tell you about his financial condition and his expenses?

A. He's told me for a very long time that he's very, very wealthy. He says he's -- that his -- he was an early investor in Uber, and he has stock from it. He told me that stock alone is worth anywhere from $50 to $100 million dollars. He frequently sells the Uber stock off market and gets cash for it. Earlier last year, he told me he sold $20 million-dollar worth of the stock. He told me for sure he got $20 million dollars. He said he put it into different companies because whenever he makes money, he reinvested it into other companies, I think so he doesn't have to pay taxes. He told me last year that he actually donated $2 million dollars to Lyme Disease Foundation

of a profit he had made from a cryptocurrency company that he invested in. He invested like $10,000 and made $2 million dollars. I don't know why -- oh, he's in a group of people in San Francisco where he is often an early investor in a lot of successful companies, like Uber, Ring, this video doorbell company. He's involved in a company now called Guardian, but he's constantly investing and making an insane amount of money from his investments. With the Uber --

Q. When you say, "insane amount of money," how much money has he told you that he earns?

A. Alone last year he told me he sold $20 million dollars worth of Uber stock, he made $2 million dollars in return from this cryptocurrency company. He was owed (inaudible) plus million dollars from his stock in this Ring Company which was started by his friend, Jamie, and sold to Amazon.

THE COURT: Did you say Ring?

MS. WALSH: Ring, yeah. It's like a video doorbell. R-i-n-g, yeah, it's -- and I just - this is very, very important for me to point out, I -- when I expressed that I wanted to leave California with my daughter, when I was there in May, Mr. Russell -- when I told him I wanted to come back, he had -- he's always held money over my head to control me --

MR. ADVOCATE: Your Honor, move to strike.

MS. WALSH: This is --

THE COURT: Sustained. It's beyond the scope.

MR. ADVOCATE: Right.

MS. WALSH: But --

THE COURT: Okay. Stop.

MS. WALSH: Yeah.

Q. What -- did there come a time when you and Mr. Russell discussed separating?

A. There was a time when I was pregnant that he broke up with me ---

THE COURT: I don't think that's the question. I think it's after you were -- when you were in California --

MS. ANTONCIC: No, it actually was when she was --

THE COURT: Oh, I'm sorry.

MS. ANTONCIC: -- when she was pregnant. And --

THE COURT: Why is that relevant?

MS. ANTONCIC: Well, because, if I ask the next question --

Q. What discussion -- at that time -- what discussions did you and Mr. Russell have about support for Evie?

MR. ADVOCATE: Can we get a time frame on that? Was it before the child was born?

Q. Was that before Evie was born?

A. In December, like a month before she was born, yeah. I mean, the actual text message that I'm referencing verbally

this was told to me --

MS. ANTONCIC: Okay. Hold. Can I mark this as an exhibit?

THE COURT: This would be Petitioner's 5. Just so it's clear, where's 3?

MR. ADVOCATE: So what's 5?

MS. ANTONCIC: Oh, I'm sorry. I took -- I kept an extra copy that --

MR. ADVOCATE: That's fine.

MS. ANTONCIC: -- here.

MR. ADVOCATE: I'll just take a quick look and I'll give it back to you.

MS. ANTONCIC: I gave -- I gave the Court more than one copy, I'm sorry.

THE COURT: Okay. I have marked as Petitioner's 5. Do you want it shown (inaudible)?

MS. ANTONCIC: I think we're up to 5, yeah. And let me just take back the extra copies.

THE COURT: Oh --

MS. ANTONCIC: Okay.

THE COURT: -- is it just the first for the --

MS. ANTONCIC: Yeah, it's just the first one.

THE COURT: Oh.

MS. ANTONCIC: By accident I gave the whole stack, so yeah, if you could --

Q. Well, what is this, Ms. Walsh?
A. It's just an example I found in texts --
Q. No, but -- but what -- what physically is this?
A. It's a text message between me and Mr. Russell.
Q. Okay. And is a screenshot you took?
A. Yes.
Q. Okay. With your phone?
A. Yes (inaudible).
Q. And it says on top here Stephen. Does that refer to Mr. Russell?
A. Stephen Russell, yes.
Q. And is this a text message between the two of you?
A. Yes.
Q. Okay. And it's an accurate depiction of the text message between the two of you?
A. Yes, absolutely.
Q. Okay. With the photo -- shoot -- whatever screenshot.

MS. ANTONCIC: Your Honor, I would ask that this be moved into evidence.

MR. ADVOCATE: Your Honor, I'm just going to object because it's not the full exchange. What we have here is the -- the email that appears to be -- and I'm assuming the blue is from Tara; is that correct??

MS. WALSH: Uhm.

MR. ADVOCATE: The blue is Tara's?

THE COURT: You want to -- do you want to voir dire?

MS. ANTONCIC: Or you --

MR. ADVOCATE: If I could voir dire.

MS. ANTONCIC: -- and you can also cross examine her just the rest.

MR. ADVOCATE: Okay. For just one second.

THE COURT: Well, I'll let him voir dire.

MR. ADVOCATE: Ms. Walsh, the -- the blue -- who is that, who's writing that?

MS. WALSH: Me. That's how it shows up on iMessages.

MR. ADVOCATE: And the gray below that is Mr. Russell's response?

MS. WALSH: Yes.

MR. ADVOCATE: And he was responding to something that you wrote above?

MS. WALSH: He was responding and just offering information. It wasn't necessarily I don't think a direct response. He was just -- I don't know what the timeline was between when he wrote what he wrote, and after what I wrote. I didn't even read -- this is a -- it's just an example. I mean, ongoingly he told me --

MR. ADVOCATE: That's not the question. Sorry, Ms. Walsh.

MS. WALSH: Okay.

MR. ADVOCATE: I'm saying he's responding to something that you wrote to him, correct?

MS. WALSH: I -- I'm not sure if you'd call it a response, but his response -- I mean, texts aren't always response. People say, you know --

MR. ADVOCATE: And you can't tell because you don't have the full message that you have written to him that preceded his email -- his text to you, correct?

MS. WALSH: I can show that, I'm more than happy to show that. I -- I mean, what would I have to show a video of scrolling through all my texts to be able to show --

MR. ADVOCATE: No, I'm just saying, the communication that's in blue, do you see that?

MS. WALSH: Yes.

MR. ADVOCATE: That's not the full exchange between you and Mr. Russell, is it? It looks like it's cut off; is that correct??

MS. WALSH: Yeah, and I can provide the whole thing.

MR. ADVOCATE: I would say, Your Honor, until we have the full exchange that it not go in.

MS. ANTONCIC: Well, Your Honor, respectfully, the --

THE COURT: I'll allow it in, subject to connection, subject to whatever weight I decide to give it. I'll allow it in. Let's just move this along. Do you need to -- to ask -- answer anything else pertaining to this document?

MS. ANTONCIC: No, other than what -- was this the only discussion you had with Mr. Russell about support for Evie on your breakup?

MS. WALSH: No, no.

Q. What other discussions did you have?

A. There were many discussions, and I was -- I mean, I wouldn't have willingly let my business go to the garbage unless he was, you know, really being willing to support us.

MR. ADVOCATE: Your Honor, I also just want to object to just one factor. Let's let the -- I'm okay with your ruling, of course, about the text itself, but this commentary at the top of it that I think should be crossed out. It looks like that --

MS. ANTONCIC: That's fine.

MR. ADVOCATE: -- was from the witness.

THE COURT: (Inaudible)

MS. ANTONCIC: That's true.

MR. ADVOCATE: It says examples of Steve's --

THE COURT: Will be deemed not in evidence --

MR. ADVOCATE: Right.

THE COURT: -- absolutely.

MR. ADVOCATE: Terrific. Thank you.

THE COURT: Agreed. You're welcome.

Q. So going back, you testified that there were conversations about Evie's support. When were -- when did these conversations take place?

A. They started from when I just found out I was pregnant. I mean, from the moment I found out I was pregnant, Mr. Russell was very forthcoming, encouraged me not to work, even when I was first pregnant. Money wasn't an issue, that he would fully financially support us, that I did not have to worry about money, even with -- Evie would be given the best like with the best of everything.

Q. And that's when you were together?

A. That's when we were together, yes.

Q. And when you were contemplating separating, what --

A. When I was -- when I was pregnant --

MR. ADVOCATE: What was the question, please?

MS. ANTONCIC: What discussions they were having at that point.

MR. ADVOCATE: Thank you.

MS. ANTONCIC: Moving into a different time frame.

A. When Mr. Russell left me when I was pregnant, he offered -- he was very generous with the money he would give me.

He was very generous with paying such as $150,000 a year getting a personal assistant. The problem with his financial support came when I decided to leave him when my daughter was six months old, and from the moment I left him and came back to New York, he cut off all financial support. I didn't get a dime until I came to court to get temporary support. He didn't give me anything for months and months.

Q. Okay. And when did you come back to New York?

A. I came back to New York at the beginning of June, but I didn't get a temporary order -- I think it started in October.

Q. And how many payments have you received under that order?

A. I've received three. I should have gotten one for January that I still haven't received.

Q. Do you know how those payments have been made?

A. Yes. They were -- they told me - because they took a while to come, and they told me on the hotline when I called that they had to be garnished from his wages, directly from his employer Prism. And it took a while for me to get the three checks that I did.

THE COURT: The temporary order was done in October and you -- just November was the first charge? You've only gotten three payments?

MS. WALSH: Yeah, for -- it would have been October, November, December, right?

THE COURT: Well, we're in February now.

MS. WALSH: Yeah, so I have a final -- a fourth I haven't gotten yet. No.

THE COURT: Let me just check again. So the first charge should have been I think November 1. Ms. Rooney (ph), is this your support collection?

MS. ROONEY: I am going to check, Your Honor.

THE COURT: Yeah, November 1. So November you got a payment or no?

MS. WALSH: I didn't get the payments until like December, I want to say.

THE COURT: You didn't get anything in November?

MS. WALSH: No.

THE COURT: You got one $3000 payment in December.

MS. WALSH: I -- I got like the --

THE COURT: You got two payments in --

MS. WALSH: Right, it was three, I think, in December, for October, November, December.

THE COURT: Okay.

MS. WALSH: Yeah.

THE COURT: So January/February you have not gotten yet?

MS. WALSH: No.

THE COURT: Is there money in transit?

MR. ADVOCATE: I don't know. I -- I -- they go -- the SCU goes directly through his company.

THE COURT: Well, your client's right there. He might tell you (inaudible) --

MR. ADVOCATE: Yes, it's all paid and current (inaudible).

THE COURT: I'm going to ask Ms. Rooney (ph), is he up to date?

MS. ROONEY: He is up to date.

THE COURT: Okay. So do you have a debit card?

MS. WALSH: No, I get -- I -- (inaudible).

THE COURT: How do you get your payments?

MS. WALSH: they're sending checks in the mail even though I gave them my direct deposit information. I sent it to them, but it's not getting direct deposited.

THE COURT: So you didn't get the -- apparently, they're -- he's up to date, so --

MS. WALSH: I didn't get the fourth check. I haven't gotten it in the mail yet. I don't know if it takes a while to come or what.

MS. ROONEY: Your Honor, that was posted two days ago.

THE COURT: Oh.

MS. ROONEY: It's probably in today's mail.

THE COURT: And is it for $3000 or $6000?

MS. ROONEY: It's $3000.

THE COURT: Three thousand. Any more questions?

MS. ANTONCIC: Yeah, I'd like to --

THE COURT: This will be Petitioner's 6.

MS. ANTONCIC: -- and I'm getting your copy as well.

MR. ADVOCATE: Oh, perfect. Thanks.

MS. ANTONCIC: Hold on one second.

MR. ADVOCATE: I appreciate that.

MS. ANTONCIC: Yes.

THE COURT: Petitioner's 6 for ID.

MR. ADVOCATE: Thanks.

MS. ANTONCIC: Yes, Your Honor.

THE COURT: Ms. Antoncic?

MS. ANTONCIC: Oh, I'm sorry. I didn't realize. Can I show this to the witness?

THE COURT: This is -- Petitioner's 6 is being shown to the witness. Do you want me to show her what I marked?

MS. ANTONCIC: Sure.

MS. WALSH: Thank you, Your Honor.

Q. Ms. Walsh, showing what's been marked as Petitioner's Exhibit 6, what is this?

A. The first page are pictures of the amenities in the building we lived in San Francisco, [redacted], on the 55th

floor. There is an indoor pool, a lounge --

Q. Just -- just -- we're just, yeah, just going to go through what they are, and then once it's in evidence you could answer more questions.

A. Okay.

Q. And did you take these pictures?

A. No, I found them online. There should be pictures of the actual apartment. Are those not -- were those not given to the Court?

Q. No, we have them. Hold on.

A. Because I think that's more relevant than just these ones. Like Evie's room and her closet and stuff.

Q. Okay. I got them. I got them.

A. And also the Brooklyn apartment if you can show that, too.

Q. We will.

A. Okay.

Q. Okay. So we'll do these, which is one, two, three, four, five, six, seven, eight. Let me get them to Jason.

THE COURT: What is this?

MS. ANTONCIC: Petitioner's --

THE COURT: What happened to the other one?

MS. ANTONCIC: We're going to withdraw that. We're going to withdraw that right now.

THE COURT: You're withdrawing that?

MS. ANTONCIC: yeah.

THE COURT: So am I just replacing this instead of that?

MS. ANTONCIC: That's fine, Your Honor.

THE COURT: Okay. So this is no longer Petitioner's 6, this is Petitioner's 6?

MS. ANTONCIC: Yes.

THE COURT: Four, five, six, seven, eight. So --

MS. ANTONCIC: Thank you.

THE COURT: Just to be clear, we're just going to go for another 10 minutes since they're clearly not going to finish.

MS. ANTONCIC: Okay.

THE COURT: Counsel, between now and the next court date, I will go for a few minutes, but I will tell you I'm available for conferencing if you with to meet in conference before the continuation hearing. Okay.

MS. ANTONCIC: That -- that would be great, Your Honor.

THE COURT: But I mean I'll leave you to continue with this exhibit.

MS. ANTONCIC: Okay.

Q. Ms. Walsh, what is -- what are those documents marked as Petitioner's 6?

A. These are pictures of the apartment that my daughter

and I lived in with Mr. Russell in California.

Q. Okay. And who took those pictures?

A. I took those -- these pictures.

Q. And are they a fair and accurate depiction of Mr. Russell's home?

A. I mean, this is just a few pictures of the home. I mean, all the pictures total would probably be a better depiction, but this is a general depiction of like the open living space, I guess, and the views of the apartment.

Q. Uh-huh. I'm just having a problem finding these. Sorry, I'm having an issue finding my copy. I'd like to move these photos into evidence, Your Honor.

MR. ADVOCATE: No objection, Your Honor.

THE COURT: Okay. Very good.

(Petitioner's 6 admitted)

MS. ANTONCIC: Your Honor, given we're going to break in a minute, I would ask that we break now because I need --

END OF DIRECT EXAMINATION

BY MS. ANTONCIC

THE COURT: Can we talk for two minutes?

MS. ANTONCIC: Yeah, we can talk for two minutes.

THE COURT: All right. Petitioner's 6 and I'll take it. So I still think you may resolve it, because by the time you come back, I think the issues regarding the

supervised visitation, I think they might be resolved because you're -- you're back in front of the judge in March, right?

MS. ANTONCIC: Right.

THE COURT: So I have a full day in May, which I'll give to you.

MS. ANTONCIC: That would be great.

THE COURT: I don't have anything -- a big block of time before then. I have little, little time frame, but I don't want you to come and go, come and go, especially f you're going to come in from California. So that date would be --

COURT OFFICER: May 8th.

THE COURT: May 8th for the day?

MR. ADVOCATE: I have the -- I know you can do it, but I've got a trial that week --

THE COURT: Okay.

MR. ADVOCATE: -- with an awful, awful case. Can we do it some time after the -- it's going to go from the 6th to the 14th, I think.

THE COURT: Oh, wow. How about before?

MR. ADVOCATE: What? Oh, it's Nassau -- Judge Lorintz.

THE COURT: No, how about before the 6th?

MR. ADVOCATE: -- Judge, I can do it before the

6th, yeah.

THE COURT: I just don't want to wait that long.

MR. ADVOCATE: Yeah.

COURT OFFICER: (Inaudible)

THE COURT: Yeah, that'll be great.

MR. ADVOCATE: Which date?

COURT OFFICER: May 2nd?

MS. ANTONCIC: I can do May 2nd.

THE COURT: And, Counsel, I know you're here on -- in March, so if, you know, you email me and say, you know, we're, you know, the day before can we come in conference during lunch, I'll be happy to do it. Okay?

MR. ADVOCATE: Yes, thank you, thank you, Your Honor.

MS. ANTONCIC: I think that would be a great idea, Your Honor.

MR. ADVOCATE: And we'll let the parties go, Your Honor, maybe we can chat for a few?

MS. ANTONCIC: That would be great.

THE COURT: If you could step down, thank you so much.

MR. ADVOCATE: Thank you.

THE COURT: The baby's beautiful.

MS. WALSH: Aww, thank you.

MR. ADVOCATE: Terrific eyes, right?

MS. ANTONCIC: She's beautiful. She looks -- she looks a lot like her father.

[PROCEEDING CONCLUDED]

[Audio CD, counter 4:07:13]

C E R T I F I C A T E

I, Valeri Wilson, certify that the foregoing transcript of proceedings in the Family Court of the State of New York, County of Westchester, in the Matter of Tara Katelyn Walsh v Stephen Grant Russell, Family Unit Number 154703, was prepared using the required transcription equipment and is a true and accurate transcript of the recording.

Signature: Valeri Wilson, Ct

Aarons Court Reporting

175 Main Street, 5th Floor, Suite 515

White Plains, New York 10601

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